

Shri Ayush Tandon And 2 Others vs State Of U.P. Thru. Prin. Secy. Home Lko. ... on 31 January, 2024

HIGH COURT OF JUDICATURE AT ALLAHABAD, LUCKNOW BENCH

A.F.R.

Neutral Citation No. - 2024:AHC-LK0:8882

Court No. - 27

Case :- APPLICATION U/S 482 No. - 739 of 2024

Applicant :- Shri Ayush Tandon And 2 Others

Opposite Party :- State Of U.P. Thru. Prin. Secy. Home Lko. And Another

Counsel for Applicant :- Lalta Prasad Misra, Shashank Shekhar Shukla

Counsel for Opposite Party :- G.A.

Hon'ble Subhash Vidyarthi J.

1. The opposite party no. 2 appeared in person and she has filed a counter affidavit. She stated that she will advance her submissions by herself, as she is not in a position to afford to pay the fee of any Advocate. The Court offered to provide the services of an Advocate at the State's expenses but she declined the. After this, the Court proceeded to hear the submissions of Dr. Lalta Prasad Misra, the learned counsel for the applicants, Sri Anurag Verma, learned A.G.A-I for the State and Ms. Disha Kappor, the opposite party no. 2 in person, who has produced her Adhaar Card to establish her identity.

2. By means of the instant application filed under Section 482 Cr.P.C, the applicants have sought quashing of the summoning order dated 08.11.2023 passed by the court of Additional Chief Judicial

Magistrate, Room No. 27, Lucknow and the entire proceedings of Complaint Case No. 9780 of 2022 instituted in furtherance of Miscellaneous Case No. 325/2022, which was an application filed by the opposite party no. 2 under Section 156(3) Cr.P.C (Disha Tandon Vs. Ayush Tandon and others) under Sections 498-A, 325, 506 I.P.C. and 3/4 of Dowry Prohibition Act, P.S. Mahila Thana, Hazratganj, District Lucknow, which is pending in the court of Additional Chief Judicial Magistrate, Room No. 27, Lucknow.

3. The opposite party no.2 had filed the application under Section 156(3) Cr.P.C. against 10 persons - (i) Ayush Tandon son of Amit Tandon (the applicant no.1) (ii) Ashutosh Tandon 'Gopal Ji', son of Lalji Tandon (Minister, Government of Uttar Pradesh) (iii)- Madhu Tandon wife of Ashutosh Tandon (iv) Subodh Tandon, son of Lalji Tandon (v)-Vandana Tandon wife of Subodh Tandon (vi) Amit Tandon, son of Lalji Tandon (the applicant no.2) (vii)- Namita Tandon wife of Amit Tandon (the applicant no. 3) (viii) Teeru Khanna daughter of Ashutosh Tandon (ix)- Saloni Sehgal daughter of Amit Tandon (x) Vansh Tandon son of Subodh Tandon, stating that she got married to the applicant no.1 on 11.12.2019. The grandfather of the applicant no.1 used to treat the opposite party no.2 affectionately and respectfully but after his death, all the accused persons used to harass her mentally and they used to abuse and beat her. Uncle of the applicant no.1, who was an Hon'ble Minister, used to encourage him to beat his wife. About two months after death of the grandfather of the applicant no.1, the opposite party no.2 was turned out of her matrimonial home on 28.09.2020. Prior to it, the entire family had harassed the opposite party no.2 and applicant no.1 had beaten her and caused a fracture in her hand. When the opposite party no.2 went to her matrimonial home on 08.10.2020, all the accused persons had treated her badly. Uncle of the applicant no.1 had threatened the opposite party no.2 to get the opposite party no.2 shot by his matrimonial uncle Chandra Mohan Mehrotra (who had not been arrayed as a party to the application filed under Section 156(3) Cr.P.C). On the first wedding anniversary of the opposite party no.2 summons of a suit for annulment of marriage was issued by the Family Court. The opposite party no.2 categorically stated in the application filed under Section 156(3) Cr.P.C., that she merely wants that she should be given the same respect by her husband and his family members as was given during the lifetime of the grandfather of the applicant no.1 but the uncle of the applicant no.1 keeps on threatening her because of his high political position.

4. It was further stated in the application under Section 156 (3) Cr.P.C. that when the opposite party no.2 had gone with her mother to meet her husband on 16.12.2021, the accused persons abused them from the balcony, threatened them, and stated that till the opposite party no.2 gave Rs. 50 lakhs and a Fortuner car in dowry, she will not be able to live in her matrimonial home. She gave an application to the police on 02.01.2022, but she was pressurized to withdraw her complaint. She gave several applications to the authorities but no action was taken thereon, and, therefore, she filed the application under Section 156(3) Cr.P.C.

5. On 24.02.2022, the learned Additional Chief Judicial Magistrate-III, Lucknow passed an order on the aforesaid stating that the opposite party no.2 and the applicant no.1 are husband and wife and the other persons impleaded in the application are members of the husband's family. Matrimonial disputes are pending between the parties. The nature of allegations levelled in the complaint does not require any investigation by the police and, therefore, it would be just and proper to register the

application as a complaint.

6. In the statement of the opposite party no.2 recorded under Section 200 Cr.P.C, she stated that her parents had fulfilled the demands of dowry made by the family members of Ayush Tandon by selling away their property. The demand for dowry started on the date following the day of her marriage and when she declined, all the accused persons started harassing her mentally and physically and she was taunted for bringing less dowry. When she used to take some medicines or go out to get medical treatment, she was locked up in a room. She stated that she had been beaten and turned out of her matrimonial home on 28.09.2020 and when she went to the house of her husband on 08.10.2020, all the accused persons had threaten to get her killed through one Chandra Mohan Mehrotra and all the accused persons had pressurized the applicant no. 1 to get his marriage with the opposite party no.2 dissolved. The accused persons had called her to talk for a settlement on 16.12.2020 and when she went there, accused Subodh Tandon had stated while standing in a balcony that the applicant can live in her matrimonial home only if she bring Rs. 50 lakhs and a Fortuner car.

7. The statement of the mother and brother of the opposite party no.2 were recorded under Section 202 Cr.P.C. Her brother stated that his family members had spent Rs.50 Lakhs in the wedding ceremony after selling and mortgaging land. Since immediately the marriage, the accused persons used to taunt the opposite party no. 2 that she was from a poor family. The mother of the opposite party no. 2 stated that opposite party no.2 was harassed even during the lifetime of the grandfather of the applicant no.1 and she was harassed for demanding Rs. 50 lakhs and a Fortuner car. In June 2021, she sold some property for Rs.85. Lakhs and arranged Rs.1.5 Lakhs more and gave it to the applicant no. 1.

8. The opposite party no.2 has filed a counter affidavit opposing the application wherein she has inter alia stated that even after she was turned out of her matrimonial home, she was hopeful of improvement in the behaviour of her husband and his family members. The applicant no.1 used to repetitively talk to her through mobile phone and assure that he will take her back to her matrimonial home. When the applicant no.1 did not take the opposite party no. 2 to his home, she tried to lodge a report with the police but her report was not registered. Thereafter she sent an application dated 11.12.2022 to the State Women Commission for lodging an F.I.R, but no action was taken thereon. After sometime, the opposite party no.2 got information of petition for annulment of her marriage. She has not accepted the decree and has not withdrawn the amount of 30 lakhs and has filed an appeal against the decree.

9. In para 22 of the counter affidavit, the opposite party no.2 has stated that after her marriage, she had gone for honeymoon with the applicant no. 1 to Dubai and the opposite party no.2 and the applicant no.1 both were very happy during the trip. The opposite party no.2 has further stated in the counter affidavit that the applicants are high profile political persons connected with the ruling party and several respected advocates have declined to accept her case and, therefore, she has decided to conduct the case herself. Numerous other allegations have been levelled in the counter affidavit, which were not there in the application under Section 156 (3) Cr.P.C.

10. The learned counsel for the applicant has submitted that the marriage between the opposite party no.2 and the applicant no.1 was solemnized on 11.12.2019. On 28.10.2020 the applicant no.1 had filed a suit no. 2790 of 2020 under Section 12 of Hindu Marriage Act in the Court of the Principal Judge, Family Court, Lucknow. The opposite party no.2 appeared before the Family Court on 17.12.2020 but in spite of repetitive opportunities, she did not file a written statement. On 23.02.2021, the Family Court passed an order giving last opportunity to the opposite party no.2 to file her written statement. On 17.01.2022, she filed the application under Section 156 (3) Cr.P.C alleging harassment by the applicants and numerous other persons related to them for demanding dowry. Thereafter she filed her written statement on 20.04.2022 and she also filed a Suit No. 349 of 2022 for restitution of conjugal rights under Section 9 of the Hindu Marriage Act. Both the suits have been decided by means of a common judgment dated 18.08.2023 whereby suit number 2790 of 2020 filed by the applicant no.1 under Section 12 of the Hindu Marriage Act has been decreed and suit number 349 of 2022 filed by the opposite party no.2 under Section 9 of the Hindu Marriage Act has been dismissed. The Family Court has ordered the applicant no.1 to pay sum of Rs. 30 lakhs only to the opposite party no.2 as permanent alimony. The applicant no.1 has already deposited the amount of Rs. 30 lakhs before the Family Court. However, the opposite party no.2 has filed first Appeal No. 177 of 2023 against the judgment and decree dated 18.08.2023 passed by the Family Court and she has not withdrawn the amount of Rs. 30 lakhs deposited by the applicant no. 1.

11. In light of the aforesaid facts, the submissions of the learned counsel for the applicants is that the complaint has been filed as an abuse of the process of law for pressurizing the applicants for a favourable outcome in the matrimonial litigation between the parties.

12. The opposite party no.2 has submitted that the applicants have wrongly stated in the application under Section 482 Cr.P.C, that they have no criminal history whereas the applicant no.1 and 2 are accused in F.I.R No. 142 of 2020, Police station, Mall, District Lucknow West, under Sections 447, 323, 504 I.P.C. and 3(1)(da) 3(1)(dha) of SC/ST Act. However, besides lodging of the F.I.R, nothing further has been disclosed in the counter affidavit and in response to a specific query put by the Court, as to what was the outcome of the investigation in furtherance of the F.I.R. and whether the applicant nos. 1 and 2 have been summoned in that case or a final report has been submitted, the opposite party no.2 stated that she is not aware about the further status of the case after lodging the F.I.R.

13. The opposite party no.2 next submitted that she has implicated only those family members of the applicant no.1, who had only actually committed offences against her and had it been her intention to implicate the entire family of the applicant no.1, she would have arrayed the grandfather and grandmother of the applicant no.1 also.

14. The opposite party no.2 lastly submitted that she had filed Writ C No. 1261 of 2022 and it is recorded in the order dated 06.04.2022 passed by the division bench in that case that the parties were willing to make efforts for settlement of the dispute through the process of mediation. The applicant no.1 was directed to deposit a sum of Rs. 30,000/- in the Mediation and Conciliation Centre of this Court but he did not comply with the order by depositing the aforesaid amount. The opposite party no.2 has submitted that she merely wants restitution of her matrimonial relationship

and she is making every endeavour with the aforesaid objective. She has filed an appeal before this court challenging the order passed by the Family Court dismissing her suit for restitution of conjugal rights and decreeing the suit filed by the applicant no.1 under Section 12 of the Hindu Marriage Act.

15. Sri. Anurag Verma, learned A.G.A-I stated that the proceedings arise out of an Application filed under Section 156(3) Cr.P.C filed by the private respondent no.2 which has been registered as a complaint and the state is merely a formal party. However, Sri Verma opposed the application and submitted that while deciding an application under Section 482 Cr.P.C, the court has to look into the allegations levelled by the complainant only and to see whether a case for trial is made out on the basis of allegation of the complainant herself and the court cannot look into the defence taken by the accused persons.

16. I have considered the facts and circumstances of the case and submissions advanced by the learned counsel for the applicants, the opposite party no.1 in person and the learned A.G.A.-I. Before proceeding to analyze the same, it will be appropriate to recollect the law regarding the scope of enquiry while exercising jurisdiction under Section 482 Cr.P.C.

17. While dealing with the scope of interference under Section 482 Cr.P.C. in a case arising out of matrimonial disputes, the Hon'ble held in Preeti Gupta v. State of Jharkhand, (2010) 7 SCC 667, that: -

"14. This Court in a number of cases has laid down the scope and ambit of courts' powers under Section 482 CrPC. Every High Court has inherent power to act ex debito justitiae to do real and substantial justice, for the administration of which alone it exists, or to prevent the abuse of process of court. Inherent power under Section 482 CrPC can be exercised:

- (i) to give effect to an order under the Code;
- (ii) to prevent the abuse of process of court; and
- (iii) to otherwise secure the ends of justice.

* * *

18. The powers possessed by the High Court under Section 482 of the Code are very wide and the very plenitude of the power requires great caution in its exercise. The Court must be careful to see that its decision in exercise of this power is based on sound principles. The inherent power should not be exercised to stifle a legitimate prosecution but the Court's failing to use the power for advancement of justice can also lead to grave injustice.

* * *

21. This Court in *State of Karnataka v. L. Muniswamy* [(1977) 2 SCC 699] observed that the wholesome power under Section 482 CrPC entitles the High Court to quash a proceeding when it comes to the conclusion that allowing the proceeding to continue would be an abuse of process of court or that the ends of justice require that the proceeding ought to be quashed. The High Courts have been invested with inherent powers, both in civil and criminal matters, to achieve a salutary public purpose. A court proceeding ought not to be permitted to degenerate into a weapon of harassment or persecution. In this case, the Court observed that ends of justice are higher than the ends of mere law though justice must be administered according to laws made by the legislature. This case has been followed in a large number of subsequent cases of this Court and other courts.

* * *

30. It is a matter of common knowledge that unfortunately matrimonial litigation is rapidly increasing in our country. All the courts in our country including this Court are flooded with matrimonial cases. This clearly demonstrates discontent and unrest in the family life of a large number of people of the society.

* * *

35. The ultimate object of justice is to find out the truth and punish the guilty and protect the innocent. To find out the truth is a Herculean task in majority of these complaints. The tendency of implicating the husband and all his immediate relations is also not uncommon. At times, even after the conclusion of the criminal trial, it is difficult to ascertain the real truth. The courts have to be extremely careful and cautious in dealing with these complaints and must take pragmatic realities into consideration while dealing with matrimonial cases. The allegations of harassment of husband's close relations who had been living in different cities and never visited or rarely visited the place where the complainant resided would have an entirely different complexion. The allegations of the complainant are required to be scrutinised with great care and circumspection."

18. In *Mahmood Ali versus State of U.P.*, 2023 SCC OnLine SC 950, the Hon'ble Supreme Court held that: -

"Whenever an accused comes before the Court invoking either the inherent powers under Section 482 of the Code of Criminal Procedure (CrPC) or extraordinary jurisdiction under Article 226 of the Constitution to get the FIR or the criminal proceedings quashed essentially on the ground that such proceedings are manifestly frivolous or vexatious or instituted with the ulterior motive for wreaking vengeance, then in such circumstances the Court owes a duty to look into the FIR with care and a little more closely. We say so because once the complainant decides to proceed against the accused with an ulterior motive for wreaking personal vengeance, etc., then he would ensure that the FIR/complaint is very well drafted with all the necessary pleadings. The complainant would ensure that the averments made in the FIR/complaint are such that they disclose the necessary ingredients to constitute the alleged offence. Therefore, it will not be just enough for the Court to look into the

averments made in the FIR/complaint alone for the purpose of ascertaining whether the necessary ingredients to constitute the alleged offence are disclosed or not. In frivolous or vexatious proceedings, the Court owes a duty to look into many other attending circumstances emerging from the record of the case over and above the averments and, if need be, with due care and circumspection try to read in between the lines. The Court while exercising its jurisdiction under Section 482 of the CrPC or Article 226 of the Constitution need not restrict itself only to the stage of a case but is empowered to take into account the overall circumstances leading to the initiation/registration of the case as well as the materials collected in the course of investigation."

19. What appears from the material placed before this court by the applicants and the opposite party no.2 is that the opposite party no.2 got married to the applicant no.1 on 11.12.2019. The grand-father of the applicant no. 1 was Governor of Madhya Pradesh and an uncle of the applicant was a Minister in U. P. Government. She stated that the Grand-father of the applicant no. 1 had brought her as his Grand daughter-in-law with great enthusiasm and expectations and he always treated her with affection and respect. After his death, all the 10 accused persons started harassing her mentally, abusing and beating her. However, she has not pleaded any specific incident caused by each of the 10 accused persons. She has alleged that she was turned out of her matrimonial home on 28.09.2020, two months after the death of the Grand-father of the applicant no. 1. Although she has alleged that she was beaten up and a fracture was caused in her hand, no medical documents were produced by her either before the Magistrate or with the counter affidavit filed in this Court to support this contention.

20. Although she has stated in the application under Section 156(3) Cr.P.C. that she was treated with great affection and respect by the grandfather of the applicant no.1 and her ill treatment and harassment started after his death, in the statement recorded under Section 200 Cr.P.C., the opposite party no.2 stated that she was harassed for demanding dowry from the day following the date of her marriage. At the same time, in the counter affidavit filed before this court, she stated that after the marriage, she had gone with her husband for honeymoon to Dubai and both of them had a very pleasant trip. The aforesaid stands taken by the opposite party no.2 at various stages show gross contradiction regarding material facts about her complaint.

21. The Magistrate has himself mentioned in the impugned order dated 08.11.2023, that there are many contradictions in the stand taken by the opposite party no.2 in the application filed under Section 156(3) Cr.P.C. and in the statements recorded under Section 200 and 202 Cr.P.C. It is stated in the complaint that the grandfather of the applicant no.1 had brought her as her grand daughter-in-law with great enthusiasm and after his death, she was harassed by the husband's family members, whereas in her statement recorded under Section 200 Cr.P.C, she stated that her harassment had started immediately after her marriage. In the complaint, the opposite party no.2 has stated that the marriage was solemnized with great pomp and show as per the desire of the grandfather of the applicant no.1 whereas, in her evidence, she stated that her family members had got marriage solemnized after selling some land and mortgaging some other. The learned Magistrate further recorded that the record reveals that some incidents took place due to lack of matrimonial

adjustments between the parties and, accordingly, there was sufficient ground to summon the applicants only, who are the husband, father-in-law and mother-in-law of the opposite party no.2, to face trial for offences 498-A, 325, 506 I.P.C. and 3/4 of Dowry Prohibition Act. Regarding the other persons arrayed by the opposite party no.2, the Magistrate came to a conclusion that no specific allegation had been levelled against them and there was no need to summon them in view of the law laid down by the Hon'ble Supreme Court in the case of Geeta Mehrotra and another Vs. State of Uttar Pradesh and another: (2012) 10 SCC 741.

22. However, the learned Magistrate erred in summoning the applicants to face the trial without there being any specific allegation of commission of any act by the applicant nos. 2 and 3 which may amount to an offence. Moreover, there is absolutely no material to support the allegations against the applicant no. 1.

23. It is not disputed that the opposite party no.2 received summon of the suit under Section 12 of the Hindu Marriage Act filed by the applicant no. 1 and she had put in appearance before the family court on 17.12.2020 and had sought time for filing written statement. When the opposite party no. 2 did not file her written statement, on 23.02.2021, the Family Court had passed an order granting last opportunity to the opposite party no. 2 to file her written statement. The application under Section 156 (3) Cr.P.C was filed on 17.01.2022 and the written statement was filed on 20.04.2022. On the same day, the opposite party no.2 filed a suit under Section 9 of the Hindu Marriage Act. The suit filed by the applicant no.1 under Section 12 of the Hindu Marriage act has been decreed and the suit filed by the opposite party no.2 under Section 9 of the Hindu Marriage Act has been dismissed by means of a common judgment dated to 18.08.2023.

24. While decreeing the suit under Section 12 of the Hindu Marriage Act, the family Court has directed the applicant no. 1 to pay Rs. 30 lakhs to the opposite party no.2 as permanent alimony, which amount has been deposited by the applicant no.1 before the Family Court. The opposite party no. 2 has not withdrawn this amount and she has filed an appeal against the judgment and decree passed by the Family Court, which is pending consideration of this court.

25. In *Abhishek versus State of M.P.*, 2023 SCC OnLine SC 1083, the Hon'ble Supreme Court has held that where the wife had levelled general allegations against her husband and his family members, the same is insufficient to constitute cruelty in terms of Section 498-A IPC. This factor is also damaging to the case of the complainant that she filed a complaint alleging dowry harassment, long after leaving her matrimonial home and just before the husband initiated divorce proceedings.

26. In the present case, the complaint application under Section 156 (3) Cr.P.C has been filed after receipt of summon of the suit and after the suit filed under Section 12 of the Hindu Marriage Act and after the Family Court had granted last opportunity to the opposite party no.2 to file her written statement and even after the date of that last opportunity had expired.

27. The opposite party no.2 had stated in her complaint that when she went to her matrimonial home on 08.10.2020, all the accused persons had treated her badly; that the uncle of the applicant no.1, who was a Minister, had threatened to get her shot by his matrimonial uncle Chandra Mohan

Mehrotra (who had not been arrayed as a party to the application filed under Section 156(3) Cr.P.C), whereas in her statement recorded under Section 200 Cr.P.C., she stated that on 08.10.2020, all the accused persons had threaten to get her killed through one Chandra Mohan Mehrotra.

28. It also seems to be absurd that the family of the opposite party no. 2 had got her married to the applicant no. 1, who is the Grand-son of a Governor and nephew of a Minister, by selling away and mortgaging their land and long after her marriage and her having been turned out of her matrimonial home on 28.09.2020, when she had gone with her mother to meet her husband on 16.12.2021, the accused persons abused and threatened them and demanded Rs. 50 lakhs and a Fortuner car, and that too, while they were standing in the balcony of their house. In her statement recorded under Section 200 Cr.P.C. she assigned the role of demanding Rs. 50 lakhs and a Fortuner car to the co-accused Subodh Tandon, who has not been summoned.

29. The opposite party no.2 categorically stated in the application filed under Section 156(3) Cr.P.C., that she merely wants that she should be given the same respect by her husband and his family members as was given during the lifetime of the grandfather of the applicant no.1 but the uncle of the applicant no.1 keeps on threatening her because of his high political position. In the counter affidavit filed before this Court, the opposite party no.2 has stated that even after she was turned out of her matrimonial home, she was hopeful of improvement in the behaviour of her husband and his family members. The applicant no.1 used to repetitively talk to her through mobile phone and assure that he will take her back to her matrimonial home. When the applicant no.1 did not take the opposite party no. 2 to his home, she tried to lodge a report. During oral submissions also, she has submitted that she merely wants restitution of her matrimonial relationship and she is making every endeavour with the aforesaid objective.

30. From the aforesaid facts, it appears that the opposite party no.2 has filed the application under Section 156 (3) Cr.P.C. merely to put pressure on the applicants and other members of their family for restitution of her matrimonial relationship with the applicant no.1. However, she had filed a suit under Section 9 of the Hindu Marriage Act with the same objective, which has been dismissed by the Family Court. Criminal prosecution cannot be allowed to be misused for ulterior objective to put undue pressure on the husband, his family members and relatives for restitution of conjugal rights.

31. The foundation of a strong matrimonial relationship is mutual love and respect and the sustainability and quality of matrimonial relations restored under threat of criminal prosecution is to be pondered by the opposite party no. 2 herself and this Court is refraining from making any observation in this regard.

32. In view of the aforesaid discussion, this Court is of the considered view that the continuance of the criminal proceedings against the applicants will be a gross abuse of the process of law and will result in the failure of justice to the applicants.

33. Accordingly, the application is allowed and the order dated 08.11.2023 passed by the court of Additional Chief Judicial Magistrate, Room No. 27, Lucknow along with the criminal proceedings of Complaint Case No. 9780 of 2022 in Miscellaneous Case No. 325/2022, which was an application

filed under Section 156(3) Cr.P.C, is hereby quashed.

(Subhash Vidyarthi J.) Order Date :- 31.1.2024 Preeti.